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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:09-cv-02413-WYD-KMT

Cross Continent Development, LLC v. Town of Akron, Colorado et al
Assigned to: Judge Wiley Y. Daniel
Referred to: Magistrate Judge Kathleen M. Tafoya
Case in other court: USCA, 12-01391
Cause: 42:1983 Civil Rights Act

Date Filed: 10/09/2009
Date Terminated: 04/21/2014
Jury Demand: Both
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff

Cross Continent Development, LLC
a Colorado limited liability corporation

represented by **Victor M. Morales**
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TERMINATED: 09/17/2010

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V.

Defendant

Town of Akron, Colorado
a Colorado municipal corporation

represented by **David Gregory Mayhan**
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TERMINATED: 03/06/2014

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Defendant

Akron Town Council, The
TERMINATED: 08/31/2012

represented by **Geoffrey Race**
(See above for address)

Lawrence Michael Brooks , Jr.
(See above for address)

Mary Kathryn Strauss
(See above for address)
TERMINATED: 03/06/2014

Mary Alice Wells
(See above for address)
ATTORNEY TO BE NOTICED

Peter H. Doherty
(See above for address)
TERMINATED: 03/06/2014

Rachel Ollar Entrican
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Carl S. McGuire, II
*Esq., in his official capacity as Attorney for
the Town of Akron*
TERMINATED: 02/07/2014

represented by **Geoffrey Race**
(See above for address)

Lawrence Michael Brooks , Jr.
(See above for address)

Mary Kathryn Strauss
(See above for address)

TERMINATED: 03/06/2014

Mary Alice Wells
(See above for address)
ATTORNEY TO BE NOTICED

Peter H. Doherty
(See above for address)
TERMINATED: 03/06/2014

Rachel Ollar Entrican
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

**Board of Trustees of the Town of Akron,
The**
TERMINATED: 08/31/2012

represented by **Geoffrey Race**
(See above for address)

Lawrence Michael Brooks , Jr.
(See above for address)

Mary Kathryn Strauss
(See above for address)
TERMINATED: 03/06/2014

Mary Alice Wells
(See above for address)
ATTORNEY TO BE NOTICED

Peter H. Doherty
(See above for address)
TERMINATED: 03/06/2014

Rachel Ollar Entrican
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

**Colorado Plains Regional Airport
Development Committee, The**
TERMINATED: 08/31/2012

represented by **Geoffrey Race**
(See above for address)
ATTORNEY TO BE NOTICED

Lawrence Michael Brooks , Jr.
(See above for address)
ATTORNEY TO BE NOTICED

Mary Kathryn Strauss
(See above for address)
TERMINATED: 03/06/2014

Mary Alice Wells
(See above for address)
ATTORNEY TO BE NOTICED

Peter H. Doherty
 (See above for address)
TERMINATED: 03/06/2014

Rachel Ollar Entrican
 (See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
10/09/2009	<u>1</u>	COMPLAINT against Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The (Filing fee \$ 350, Receipt Number 22651) Summons Not Issued, filed by Cross Continent Development, LLC. (Attachments: # <u>1</u> Exhibit 1, # <u>2</u> Civil Cover Sheet, # <u>3</u> Receipt)(jak,) (Entered: 10/09/2009)
10/15/2009	<u>2</u>	AMENDED COMPLAINT against all defendants, filed by Cross Continent Development, LLC. (Attachments: # <u>1</u> Exhibit 1)(Morales, Victor) (Entered: 10/15/2009)
10/22/2009	<u>3</u>	SUMMONS Returned Executed by Cross Continent Development, LLC. Carl S. McGuire, II served on 10/19/2009, answer due 11/9/2009. (Morales, Victor) (Entered: 10/22/2009)
10/22/2009	<u>4</u>	SUMMONS Returned Executed by Cross Continent Development, LLC. Colorado Plains Regional Airport Development Committee, The served on 10/20/2009, answer due 11/9/2009. (Morales, Victor) (Entered: 10/22/2009)
10/22/2009	<u>5</u>	SUMMONS Returned Executed by Cross Continent Development, LLC. Board of Trustees of the Town of Akron, The served on 10/20/2009, answer due 11/9/2009. (Morales, Victor) (Entered: 10/22/2009)
10/22/2009	<u>6</u>	SUMMONS Returned Executed by Cross Continent Development, LLC. Town of Akron, Colorado served on 10/20/2009, answer due 11/9/2009. (Morales, Victor) (Entered: 10/22/2009)
10/22/2009	<u>7</u>	SUMMONS Returned Executed by Cross Continent Development, LLC. Akron Town Council, The served on 10/20/2009, answer due 11/9/2009. (Morales, Victor) (Entered: 10/22/2009)
10/23/2009	<u>8</u>	ORDER REFERRING CASE to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 10/23/09. (wydcd, rrk) (Entered: 10/23/2009)
10/23/2009	<u>9</u>	ORDER SETTING RULE 16(b) SCHEDULING CONFERENCE AND RULE 26(f) PLANNING MEETING: Scheduling Conference set for 1/14/2010 09:00 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya by Magistrate Judge Kathleen M. Tafoya on 10/23/09. (kmtcd) (Entered: 10/27/2009)
11/05/2009	<u>10</u>	Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re <u>1</u> Complaint, <u>2</u> Amended Complaint by Defendants Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The. (Attachments: # <u>1</u> Proposed Order (PDF Only) Granting Unopposed Motion for Extension of Time to Answer or Otherwise Plead)(Doherty, Peter) (Entered: 11/05/2009)
11/05/2009	11	MEMORANDUM regarding <u>10</u> Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re <u>1</u> Complaint, <u>2</u> Amended ComplaintUnopposed MOTION for Extension of Time to File Answer or Otherwise Respond re <u>1</u> Complaint, <u>2</u>

		Amended Complaint filed by Board of Trustees of the Town of Akron, The, Akron Town Council, The, Carl S. McGuire, II, Town of Akron, Colorado, Colorado Plains Regional Airport Development Committee, The. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 11/5/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 11/05/2009)
11/05/2009	12	MINUTE ORDER granting 10 Motion for Extension of Time to Answer or Otherwise Respond. Defendants shall file their answers or otherwise respond to the Amended Complaint no later than 12/9/2009. By Magistrate Judge Kathleen M. Tafoya on 11/5/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 11/05/2009)
11/05/2009	13	NOTICE of Entry of Appearance by Geoffrey Race on behalf of Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The (Race, Geoffrey) (Entered: 11/05/2009)
11/05/2009	14	NOTICE of Entry of Appearance by Lawrence Michael Brooks, Jr on behalf of Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The (Brooks, Lawrence) (Entered: 11/05/2009)
11/06/2009	15	NOTICE of Entry of Appearance by Mary Kathryn Strauss on behalf of Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The (Strauss, Mary) (Entered: 11/06/2009)
11/19/2009	16	NOTICE of Entry of Appearance by Grant T. Sullivan on behalf of Cross Continent Development, LLC (Sullivan, Grant) (Entered: 11/19/2009)
12/08/2009	17	CORPORATE DISCLOSURE STATEMENT by Plaintiff Cross Continent Development, LLC.. (Morales, Victor) (Entered: 12/08/2009)
12/09/2009	18	First MOTION to Dismiss by Defendants Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The. (Attachments: # 1 Proposed Order (PDF Only) Order re: Defendants' Motion to Dismiss)(Doherty, Peter) (Entered: 12/09/2009)
12/23/2009	19	Joint MOTION to Vacate 9 Order <i>Setting January 14, 2010 Scheduling Conference and Associated Deadlines</i> by Plaintiff Cross Continent Development, LLC. (Sullivan, Grant) (Entered: 12/23/2009)
12/23/2009	20	MEMORANDUM regarding 19 Joint MOTION to Vacate 9 Order <i>Setting January 14, 2010 Scheduling Conference and Associated Deadlines</i> filed by Cross Continent Development, LLC. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 12/23/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 12/23/2009)
12/23/2009	21	MINUTE ORDER denying 19 Motion to Vacate January 14, 2010 Scheduling Conference and Associated Deadlines. Pursuant to Fed. R. Civ. P. 16, a scheduling order must be issued within the earlier of 120 days after any defendant has been served with the complaint or 90 days after any defendant has appeared. By Magistrate Judge Kathleen M. Tafoya on 12/23/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 12/23/2009)
12/30/2009	22	BRIEF in Opposition to 18 First MOTION to Dismiss filed by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 12/30/2009)

12/31/2009	23	CERTIFICATE of Mailing/Service to <i>Brief in Opposition to Review</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 12/31/2009)
12/31/2009	24	AMENDED 23 Certificate of Mailing/Service <i>Re: Brief in Opposition to Defendants' Motion to Dismiss</i> by Plaintiff Cross Continent Development, LLC. (Sullivan, Grant) (Entered: 12/31/2009)
01/07/2010	25	Proposed Scheduling Order by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 01/07/2010)
01/13/2010	26	REPLY to Response to 18 First MOTION to Dismiss filed by Defendants Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The. (Strauss, Mary) (Entered: 01/13/2010)
01/14/2010	27	Minute Entry for proceedings held before Magistrate Judge Kathleen M. Tafoya: Scheduling Conference held on 1/14/2010. Discovery due by 7/16/2010. Dispositive Motions due by 8/16/2010. Settlement Conference set for 6/17/2010 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. Final Pretrial Conference set for 10/14/2010 09:15 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. (FTR - Debra Brown.) (kmtcd,) (Entered: 01/14/2010)
01/14/2010	28	SCHEDULING ORDER by Magistrate Judge Kathleen M. Tafoya on 1/14/2010. (kmtcd,) (Entered: 01/14/2010)
01/14/2010	29	ORDER SETTING SETTLEMENT CONFERENCE: Settlement Conference set for 6/17/2010 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya by Magistrate Judge Kathleen M. Tafoya on 1/14/2010. (kmtcd,) (Entered: 01/14/2010)
01/19/2010	30	Unopposed MOTION for Leave to <i>Substitute Defendants' Reply Brief in Support of Their Motion to Dismiss</i> by Defendants Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The. (Attachments: # 1 Exhibit Exhibit A: Amended Reply in Support of Motion to Dismiss, # 2 Proposed Order (PDF Only)) (Doherty, Peter) (Entered: 01/19/2010)
01/20/2010	31	MINUTE ORDER granting 30 Defendants Unopposed Motion for Leave to Substitute Defendants Reply Brief in Support of Their Motion to Dismiss. The Reply Brief attached as Exhibit A to the motion may be substituted for the Reply Brief previously filed January 13, 2010. This Reply Brief shall, however, be electronically filed by the Defendants. by Chief Judge Wiley Y. Daniel on 1/20/2010.(erv,) (Entered: 01/20/2010)
01/21/2010	32	AMENDED 26 Reply to Response to Motion, <i>to Dismiss</i> by Defendants Town of Akron, Colorado, Akron Town Council, The, Carl S. McGuire, II, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The. (Doherty, Peter) (Entered: 01/21/2010)
06/10/2010	33	Joint MOTION to Vacate 29 Order <i>June 17, 2010 Settlement Conference</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 06/10/2010)
06/11/2010	34	MEMORANDUM regarding 33 Joint MOTION to Vacate 29 Order June 17, 2010 Settlement Conference filed by Cross Continent Development, LLC. Motions referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 6/11/2010. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(erv,) (Entered: 06/11/2010)
06/11/2010	35	MINUTE ORDER granting 33 Motion to Vacate June 17, 2010 Settlement Conference. The Settlement Conference set for June 17, 2010, is VACATED. By Magistrate Judge

		Kathleen M. Tafoya on 6/11/10.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 06/11/2010)
06/14/2010	36	NOTICE of Entry of Appearance by Rachel E. Ollar on behalf of All Defendants (Ollar, Rachel) (Entered: 06/14/2010)
06/14/2010	37	Unopposed MOTION for Extension of Time to <i>discovery cut-off and deadline for dispositive motions</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Ollar, Rachel) (Entered: 06/14/2010)
06/14/2010	38	MEMORANDUM regarding 37 Unopposed MOTION for Extension of Time to <i>discovery cut-off and deadline for dispositive motions</i> filed by Board of Trustees of the Town of Akron, The, Akron Town Council, The, Carl S. McGuire, II, Town of Akron, Colorado, Colorado Plains Regional Airport Development Committee, The. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 6/14/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 06/14/2010)
06/14/2010	39	MINUTE ORDER granting 37 Motion for Extension of Discovery Cut-Off and Deadline for Dispositive Motions. The discovery cutoff is extended to 9/30/2010. The dispositive motions deadline is extended to 10/29/2010. Additionally, the Final Pretrial Conference is RESET to 1/4/2011 at 9:45 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 6/14/10.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 06/14/2010)
06/23/2010	40	MOTION for Extension of Time to <i>Submit Expert Disclosures</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Race, Geoffrey) (Entered: 06/23/2010)
06/23/2010	41	MEMORANDUM regarding 40 MOTION for Extension of Time to <i>Submit Expert Disclosures</i> filed by Board of Trustees of the Town of Akron, The, Akron Town Council, The, Carl S. McGuire, II, Town of Akron, Colorado, Colorado Plains Regional Airport Development Committee, The. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 6/23/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 06/23/2010)
06/23/2010	42	MINUTE ORDER granting 40 Motion for Extension of Time for Defendants to Submit Expert Disclosures. The deadline for disclosure of rebuttal experts is extended to July 14, 2010. By Magistrate Judge Kathleen M. Tafoya on 6/23/10.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 06/23/2010)
08/31/2010	43	NOTICE of Entry of Appearance by Katherine A. Kelley on behalf of Cross Continent Development, LLC (Kelley, Katherine) (Entered: 08/31/2010)
09/16/2010	44	MOTION to Withdraw as Attorney <i>Co-Counsel for Plaintiff Cross Continent Development, LLC</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 09/16/2010)
09/16/2010	45	MOTION to Withdraw as Attorney <i>Co-Counsel for Plaintiff Cross Continent Development, LLC</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 09/16/2010)
09/17/2010	46	MEMORANDUM regarding 45 MOTION to Withdraw as Attorney <i>Co-Counsel for Plaintiff Cross Continent Development, LLC</i> filed by Cross Continent Development,

		LLC, 44 MOTION to Withdraw as Attorney <i>Co-Counsel for Plaintiff Cross Continent Development, LLC</i> filed by Cross Continent Development, LLC. Motions referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 9/17/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 09/17/2010)
09/17/2010	47	MINUTE ORDER granting 45 Motion to Withdraw as Attorney for Plaintiff. Attorney Grant T. Sullivan terminated by Magistrate Judge Kathleen M. Tafoya on 9/17/2010.(erv,) (Entered: 09/17/2010)
09/23/2010	48	ORDER granting in part and denying in part 18 Defendants Motion to Dismiss. It is GRANTED as to the unlawful taking claim (the Third Claim for Relief) and DENIED as to all other claims. by Chief Judge Wiley Y. Daniel on 9/23/2010.(erv,) (Entered: 09/23/2010)
09/29/2010	49	Joint MOTION for Extension of Time to <i>Discovery Cut-Off and Deadline for Dispositive Motions</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 09/29/2010)
09/29/2010	50	MEMORANDUM regarding 49 Joint MOTION for Extension of Time to <i>Discovery Cut-Off and Deadline for Dispositive Motions</i> filed by Cross Continent Development, LLC. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 9/29/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 09/29/2010)
10/01/2010	51	MINUTE ORDER granting 49 Joint Motion for Extension of Discovery Cut-Off and Deadline for Dispositive Motions. The discovery cut-off is extended to November 24, 2010. The dispositive motions deadline is extended to December 30, 2010. Additionally, the Final Pretrial Conference is RESET to February 24, 2011 at 9:45 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 10/1/2010.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc2) (Entered: 10/01/2010)
10/01/2010	52	Unopposed MOTION for Extension of Time to <i>Respond to Defendant McGuire's Second Set of Written Discovery</i> by Plaintiff Cross Continent Development, LLC. (Kelley, Katherine) (Entered: 10/01/2010)
10/01/2010	53	MEMORANDUM regarding 52 Unopposed MOTION for Extension of Time to Respond to Defendant McGuire's Second Set of Written Discovery filed by Cross Continent Development, LLC. Motions referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 10/1/2010. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(erv,) (Entered: 10/01/2010)
10/04/2010	54	MINUTE ORDER granting 52 Plaintiff's Unopposed Motion for Extension of Time to Respond to Defendant McGuire's Second Set of Written Discovery. Plaintiff shall respond no later than October 14, 2010. By Magistrate Judge Kathleen M. Tafoya on 10/4/2010.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc2) (Entered: 10/04/2010)
10/07/2010	55	ANSWER to 2 Amended Complaint by Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado.(Race, Geoffrey) (Entered: 10/07/2010)
11/24/2010	56	Joint MOTION for Extension of Time to <i>for Discovery Cut-Off and Deadline for Dispositive Motions</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 11/24/2010)

11/24/2010	57	MEMORANDUM regarding 56 Joint MOTION for Extension of Time to <i>for Discovery Cut-Off and Deadline for Dispositive Motions</i> filed by Cross Continent Development, LLC. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 11/24/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 11/24/2010)
11/30/2010	58	MINUTE ORDER granting 56 Joint Motion for Extension of Discovery Cutoff and Deadline for Dispositive Motions. The discovery cutoff is extended to 1/10/2011. The dispositive motions deadline is extended to 2/10/2011. The Final Pretrial Conference is RESET to 4/5/2011 at 9:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 11/30/10.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 11/30/2010)
02/11/2011	59	ORDER DISMISSING CASE WITH PREJUDICE with no fees or costs to either party. by Judge Christine M. Arguello on 2/11/2011. (erv,) (Entered: 02/14/2011)
02/14/2011	60	Utility Resetting Deadlines/Hearings: TEXT ONLY ENTRY - NO DOCUMENT ATTACHED Final Pretrial Conference set for 4/5/2011 09:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. (erv,) (Entered: 02/14/2011)
02/14/2011	61	Docket Annotation re: 59 Order Dismissing Case, This is NOT a part of this case. It was a docketing error. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (erv,) (Modified on 2/15/2011 corrected typing error)(erv2,). (Entered: 02/14/2011)
03/28/2011	62	Joint MOTION for Extension of Time to <i>File Proposed Final Pretrial Order</i> by Plaintiff Cross Continent Development, LLC. (Kelley, Katherine) (Entered: 03/28/2011)
03/28/2011	63	MEMORANDUM regarding 62 Joint MOTION for Extension of Time to <i>File Proposed Final Pretrial Order</i> filed by Cross Continent Development, LLC. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 3/28/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 03/28/2011)
03/28/2011	64	MINUTE ORDER granting 62 Motion for Extension of Deadline to File Proposed Final Pretrial Order. The parties shall file their proposed Final Pretrial Order no later than March 31, 2011. By Magistrate Judge Kathleen M. Tafoya on 3/28/11.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 03/28/2011)
03/31/2011	65	Proposed Pretrial Order by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B)(Kelley, Katherine) (Entered: 03/31/2011)
04/05/2011	66	Minute Entry for Final Pretrial Conference held on 4/5/2011 before Magistrate Judge Kathleen M. Tafoya. (Court Reporter: FTR - Nick Richards) (kmtcd) (Entered: 04/05/2011)
04/05/2011	67	FINAL PRETRIAL ORDER by Magistrate Judge Kathleen M. Tafoya on 4/5/2011. (kmtcd) (Entered: 04/05/2011)
04/13/2011	68	MINUTE ORDER Counsel for the parties shall jointly contact Chambers on or before 04/19/11, to set a trial date and final trial preparation conference by Chief Judge Wiley Y. Daniel on 04/13/11. (jjh,) (Entered: 04/13/2011)
04/19/2011	69	MINUTE ORDER setting Jury Trial for 1/9/2012 09:00 AM before Chief Judge Wiley Y. Daniel. Final Trial Preparation Conference set for 12/19/2011 at 10:00 AM before Chief Judge Wiley Y. Daniel by Chief Judge Wiley Y. Daniel on 04/19/11. (jjh,) (Entered: 04/19/2011)
05/25/2011	70	MOTION to Amend/Correct/Modify 2 Amended Complaint to <i>Include Claim for Punitive Damages</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit 1 -

		Second Amended Complaint, # 2 Exhibit 2, # 3 Exhibit 3)(Morales, Victor) (Entered: 05/25/2011)
05/25/2011	71	MEMORANDUM regarding 70 MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages filed by Cross Continent Development, LLC. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 5/25/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 05/25/2011)
06/17/2011	72	Unopposed MOTION for Extension of Time to File Response/Reply as to 70 MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Doherty, Peter) Modified on 6/20/2011 to remove repetitive text (sah2,). (Entered: 06/17/2011)
06/17/2011	73	MEMORANDUM regarding 72 Unopposed MOTION for Extension of Time to File Response/Reply as to 70 MOTION to Amend/Correct/Modify 2 Amended Complaint filed by Board of Trustees of the Town of Akron, The, Akron Town Council, The, Carl S. McGuire, II, Town of Akron, Colorado, Colorado Plains Regional Airport Development Committee, The. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 6/17/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) Modified on 6/17/2011 to delete duplicate text (jjh,). (Entered: 06/17/2011)
06/17/2011	74	MINUTE ORDER granting 72 Motion for Extension of Time to File a Response to Plaintiff's Motion for Leave to File Second Amended Complaint to Include Claim for Punitive Damages. Defendants shall file their response no later than June 30, 2011. By Magistrate Judge Kathleen M. Tafoya on 6/17/11.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 06/17/2011)
06/28/2011	75	Unopposed MOTION to Stay <i>Litigation Pursuant to the Servicemembers Civil Relief Act</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Proposed Order (PDF Only))(Race, Geoffrey) (Entered: 06/28/2011)
06/28/2011	76	RESPONSE to 70 MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages filed by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Doherty, Peter) Modified on 6/29/2011 to delete duplicate text (jjh,). (Entered: 06/28/2011)
06/28/2011	77	Amended MOTION to Stay <i>of Litigation Pursuant to the Servicemembers Civil Relief Act</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Proposed Order (PDF Only))(Race, Geoffrey) (Entered: 06/28/2011)
06/28/2011	78	MEMORANDUM regarding 75 Unopposed MOTION to Stay <i>Litigation Pursuant to the Servicemembers Civil Relief Act</i> filed by Board of Trustees of the Town of Akron, The, Akron Town Council, The, Carl S. McGuire, II, Town of Akron, Colorado, Colorado Plains Regional Airport Development Committee, The, 77 Amended MOTION to Stay <i>of Litigation Pursuant to the Servicemembers Civil Relief Act</i> filed by Board of Trustees of the Town of Akron, The, Akron Town Council, The, Carl S. McGuire, II, Town of Akron, Colorado, Colorado Plains Regional Airport Development Committee, The. Motions referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on

		6/28/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED. (wydcd, rrk) (Entered: 06/28/2011)
06/28/2011	79	RESPONSE to 75 Unopposed MOTION to Stay <i>Litigation Pursuant to the Servicemembers Civil Relief Act</i> , 77 Amended MOTION to Stay of <i>Litigation Pursuant to the Servicemembers Civil Relief Act Notice of Partial Opposition</i> filed by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 06/28/2011)
06/30/2011	80	Unopposed MOTION for Extension of Time to File Response/Reply as to 70 MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages by Plaintiff Cross Continent Development, LLC. (Kelley, Katherine) (Entered: 06/30/2011)
06/30/2011	81	MEMORANDUM regarding 80 Unopposed MOTION for Extension of Time to File Response/Reply as to 70 MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages Unopposed MOTION for Extension of Time to File Response/Reply as to 70 MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages MOTION to Amend/Correct/Modify 2 Amended Complaint to Include Claim for Punitive Damages filed by Cross Continent Development, LLC. Motion referred to Magistrate Judge Kathleen M. Tafoya by Chief Judge Wiley Y. Daniel on 6/30/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wydcd, rrk) (Entered: 06/30/2011)
06/30/2011	82	MINUTE ORDER granting 80 Motion for Extension of Time to File Reply in Support of Motion for Leave to File Second Amended Complaint. Plaintiff may file its reply no later than July 19, 2011. By Magistrate Judge Kathleen M. Tafoya on 6/30/11.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc1) (Entered: 06/30/2011)
07/19/2011	83	RESPONSE to 77 Amended MOTION to Stay of <i>Litigation Pursuant to the Servicemembers Civil Relief Act</i> filed by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 07/19/2011)
07/19/2011	84	REPLY to Response to 80 Unopposed MOTION for Extension of Time to File Response/Reply as to 70 MOTION to Amend/Correct/Modify 2 Amended Complaint filed by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit Exhibit4)(Morales, Victor) Modified on 7/20/2011 to delete duplicate text (jjh,). (Entered: 07/19/2011)
08/04/2011	85	ORDER granting 70 Motion for Leave to File Second Amended Complaint in Include Claim for Punitive Damages. The Clerk of Court is directed to file the Second Amended Complaint attached to Plaintiff's Motion by Magistrate Judge Kathleen M. Tafoya on 08/04/11.(jjh,) (Entered: 08/04/2011)
08/04/2011	86	SECOND AMENDED COMPLAINT against Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado, filed by Cross Continent Development, LLC.(jjh,) (Entered: 08/04/2011)
08/05/2011	87	REPLY to Response to 77 Amended MOTION to Stay of <i>Litigation Pursuant to the Servicemembers Civil Relief Act</i> filed by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Entrican, Rachel) (Entered: 08/05/2011)
08/11/2011	88	ORDER. ORDERED that the Amended Motion by Defendants for Stay of Litigation Pursuant to the Servicemembers Civil Relief Act Defendants Motion for Stay of

		Proceedings 77 is GRANTED. The case is STAYED until 06/28/12, EXCEPT THAT counsel for the parties shall jointly contact the Court by August 18, 2011, to set a new trial date commencing after 06/28/12. ORDERED that the Final Trial Preparation Conference set for 12/19/11, at 10:00 a.m. and the ten-day jury trial set to commence on 01/09/12 are VACATED by Chief Judge Wiley Y. Daniel on 08/11/11.(jjh,) (Entered: 08/11/2011)
09/29/2011	89	MINUTE ORDER. The Court was notified of a potential settlement of this case. On or before 12/01/11, the parties shall either file dismissal papers or a status report as to where the case stands by Chief Judge Wiley Y. Daniel on 09/29/11. (jjh,) (Entered: 09/29/2011)
12/01/2011	90	STATUS REPORT by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 12/01/2011)
12/02/2011	91	MINUTE ORDER. On or before Thursday, December 8, 2011, the parties shall JOINTLY contact Chambers by Chief Judge Wiley Y. Daniel on 12/02/11. (jjh,) (Entered: 12/02/2011)
01/18/2012	92	NOTICE of Change of Address by Victor M. Morales (Morales, Victor) (Entered: 01/18/2012)
02/21/2012	93	STATUS REPORT by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Race, Geoffrey) (Entered: 02/21/2012)
02/23/2012	94	RESPONSE to 93 Status Report by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit Exhibit A)(Morales, Victor) (Entered: 02/23/2012)
02/28/2012	95	MINUTE ORDER setting Status Conference for 3/15/2012 03:00 PM before Chief Judge Wiley Y. Daniel by Chief Judge Wiley Y. Daniel on 02/28/12. (jjhsl,) (Entered: 02/28/2012)
03/01/2012	96	Unopposed MOTION to Reset <i>3/15/12 Status Conference [Doc#95]</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Race, Geoffrey) (Entered: 03/01/2012)
03/07/2012	97	MINUTE ORDER granting 96 Motion to Reset Status Conference. The Status Conference set for Thursday, March 15, 2012, at 3:00 p.m. is VACATED and RESET to Thursday, March 22, 2012, at 4:00 p.m before Chief Judge Wiley Y. Daniel by Chief Judge Wiley Y. Daniel on 03/07/12.(jjhsl,) (Entered: 03/07/2012)
03/22/2012	98	MINUTE ENTRY for Status Conference proceedings held on 3/22/2012 before Chief Judge Wiley Y. Daniel. Jury Trial set for 8/20/2012 09:00 AM in Courtroom A1002 before Chief Judge Wiley Y. Daniel. Trial Preparation Conference set for 8/8/2012 at 04:00 PM in Courtroom A1002 before Chief Judge Wiley Y. Daniel. Defendant shall file a motion to dismiss punitive damages claim not later than Monday, April 2, 2012. Any written discovery requests regarding punitive damages shall be made not later than Monday, April 9, 2012. Any motion for deposition discovery related to punitive damages shall be filed not later than two weeks from receipt of responses to requests for written discovery. (Court Reporter: Therese Lindblom) (wydcd, rrk) (Entered: 03/26/2012)
03/26/2012	99	MOTION to Strike <i>Under Federal Rule of Civil Procedure 12(f) and</i> , MOTION to Dismiss <i>Under Federal Rule of Civil Procedure 12(b)(6)</i> by Defendants by Defendant Town of Akron, Colorado. (Race, Geoffrey) (Entered: 03/26/2012)
04/16/2012	100	RESPONSE to 99 MOTION to Strike <i>Under Federal Rule of Civil Procedure 12(f) and</i> MOTION to Dismiss <i>Under Federal Rule of Civil Procedure 12(b)(6)</i> by Defendants filed

		by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Kelley, Katherine) (Entered: 04/16/2012)
05/01/2012	101	NOTICE of Entry of Appearance by Mary Alice Wells on behalf of All Defendants (Wells, Mary) (Entered: 05/01/2012)
05/03/2012	102	REPLY to Response to 99 MOTION to Strike <i>Under Federal Rule of Civil Procedure 12(f)</i> and MOTION to Dismiss <i>Under Federal Rule of Civil Procedure 12(b)(6)</i> by Defendants filed by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Wells, Mary) (Entered: 05/03/2012)
06/13/2012	103	ORDER. ORDERED that the portion of Defendants motion filed April 16, 2012, that seeks dismissal under Federal Rule of Civil Procedure (12)(b)(6) is converted to a motion for summary judgment. ORDERED that if any party wishes to submit additional material to be considered in connection with the motion for summary judgment, they shall do so by Monday, June 25, 2012 by Chief Judge Wiley Y. Daniel on 06/13/12. (jjhsl,) (Entered: 06/13/2012)
06/25/2012	104	SUPPLEMENT/AMENDMENT to 99 MOTION to Strike <i>Under Federal Rule of Civil Procedure 12(f)</i> and MOTION to Dismiss <i>Under Federal Rule of Civil Procedure 12(b)(6)</i> by Defendants by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G)(Doherty, Peter) (Entered: 06/25/2012)
06/25/2012	105	RESPONSE to 99 MOTION to Strike <i>Under Federal Rule of Civil Procedure 12(f)</i> and MOTION to Dismiss <i>Under Federal Rule of Civil Procedure 12(b)(6)</i> by Defendants filed by Plaintiff Cross Continent Development, LLC. (Kelley, Katherine) (Entered: 06/25/2012)
07/03/2012	106	ORDER. ORDERED that Defendants Motion to Strike Under Federal Rule of Civil Procedure 12(f) and to Dismiss Under Federal Rule of Civil Procedure (12)(b)(6) 99 , which was converted in part to a motion for summary judgment by Order of June 13, 2012, is DENIED, by Chief Judge Wiley Y. Daniel on 7/3/12.(sgrim) (Entered: 07/03/2012)
07/09/2012	107	MOTION in Limine to <i>Exclude Expert Testimony of Melinda Harper and Travis Vallin</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit Exhibit 2, # 3 Exhibit Exhibit 3, # 4 Exhibit Exhibit 4, # 5 Exhibit Exhibit 5) (Morales, Victor) (Entered: 07/09/2012)
07/10/2012	108	MINUTE ORDER re: 107 MOTION in Limine to Exclude Expert Testimony of Melinda Harper and Travis Vallin, by Chief Judge Wiley Y. Daniel on 7/10/12. (sgrim) (Entered: 07/10/2012)
07/18/2012	109	Unopposed MOTION for Extension of Time to File Response/Reply as to 107 MOTION in Limine to <i>Exclude Expert Testimony of Melinda Harper and Travis Vallin</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Doherty, Peter) (Entered: 07/18/2012)
07/19/2012	110	Proposed Verdict Form <i>Stipulated by Defendants and</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Document Breach of Contract, # 2 Proposed Document Breach of Duty of Good Faith and Fair Dealing, # 3 Proposed

		Document Procedural Due Process, # 4 Proposed Document Substantive Due Process) (Morales, Victor) (Entered: 07/19/2012)
07/19/2012	111	OBJECTIONS to <i>Defendants' Proposed Jury Instructions</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 07/19/2012)
07/19/2012	112	Proposed Jury Instructions (<i>Disputed</i>) by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Document 1, # 2 Proposed Document 2, # 3 Proposed Document 3, # 4 Proposed Document 5, # 5 Proposed Document 8, # 6 Proposed Document 9, # 7 Proposed Document 10, # 8 Proposed Document 11, # 9 Proposed Document 13, # 10 Proposed Document 14, # 11 Proposed Document 15, # 12 Proposed Document 16, # 13 Proposed Document 17, # 14 Proposed Document 18, # 15 Proposed Document 19, # 16 Proposed Document 20, # 17 Proposed Document 21, # 18 Proposed Document 22)(Morales, Victor) (Entered: 07/19/2012)
07/19/2012	113	Proposed Jury Instructions <i>Stipulated to by Defendants and</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Document B, # 2 Proposed Document D, # 3 Proposed Document F, # 4 Proposed Document H, # 5 Proposed Document J, # 6 Proposed Document K, # 7 Proposed Document L, # 8 Proposed Document M, # 9 Proposed Document O, # 10 Proposed Document P, # 11 Proposed Document R, # 12 Proposed Document S, # 13 Proposed Document T, # 14 Proposed Document U, # 15 Proposed Document V, # 16 Proposed Document X, # 17 Proposed Document Z) (Morales, Victor) (Entered: 07/19/2012)
07/19/2012	114	Proposed Jury Instructions <i>and Objections</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Document)(Doherty, Peter) (Entered: 07/19/2012)
07/20/2012	115	MINUTE ORDER granting 109 Motion for Extension of Time to File Response by 07/24/12 by Chief Judge Wiley Y. Daniel on 07/20/12.(jjhsl,) (Entered: 07/20/2012)
07/20/2012	116	Proposed Verdict Form <i>Stipulated to by Defendants and</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 07/20/2012)
07/20/2012	117	Proposed Jury Instructions <i>Stipulated to by Defendants and</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 07/20/2012)
07/20/2012	118	Proposed Jury Instructions (<i>Disputed</i>) by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 07/20/2012)
07/24/2012	119	MINUTE ORDER. The Final Trial Preparation Conference set for Wednesday, August 8, 2012, is moved from 4:00 p.m. to 3:00 p.m, by Chief Judge Wiley Y. Daniel on 7/24/12. (sgrim) (Entered: 07/24/2012)
07/24/2012	120	RESPONSE to 107 MOTION in Limine to <i>Exclude Expert Testimony of Melinda Harper and Travis Vallin</i> filed by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D)(Wells, Mary) (Entered: 07/24/2012)
07/24/2012	121	MINUTE ORDER. In accordance with chambers conferral with the parties, the parties shall submit additional jury instructions, any additional stipulations or necessary revisions as to jury instructions already submitted, and any dismissal papers as to particular claims or Defendants no later than Monday, July 30, 2012. Entered by Chief Judge Wiley Y. Daniel on 7/24/12. (wydcd, rrk) (Entered: 07/24/2012)
07/30/2012	122	NOTICE of Voluntary Dismissal of Party <i>Akron Town Council, The Board of Trustees of the Town of Akron and The Colorado Plains Regional Airport Development Committee</i> by

		Plaintiff Cross Continent Development, LLC (Morales, Victor) (Entered: 07/30/2012)
07/30/2012	123	Proposed Jury Instructions (<i>Additional</i>) by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Document 23&24 and Revised 13)(Morales, Victor) (Entered: 07/30/2012)
07/30/2012	124	Proposed Jury Instructions <i>and Objections-Second Tender-</i> by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Document)(Doherty, Peter) (Entered: 07/30/2012)
08/06/2012	125	Proposed Voir Dire by Plaintiff Cross Continent Development, LLC. (Kelley, Katherine) (Entered: 08/06/2012)
08/06/2012	126	Exhibit List by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit List)(Kelley, Katherine) (Entered: 08/06/2012)
08/06/2012	127	Witness List by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Plaintiff's Witness List)(Kelley, Katherine) (Entered: 08/06/2012)
08/06/2012	128	NOTICE re 120 Response to Motion, 107 MOTION in Limine to <i>Exclude Expert Testimony of Melinda Harper and Travis Vallin Plaintiff's Motions Requiring Resolution</i> by Plaintiff Cross Continent Development, LLC (Kelley, Katherine) (Entered: 08/06/2012)
08/06/2012	129	Proposed Voir Dire by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Wells, Mary) (Entered: 08/06/2012)
08/06/2012	130	Witness List by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Wells, Mary) (Entered: 08/06/2012)
08/06/2012	131	Exhibit List by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Document Exhibit List)(Doherty, Peter) (Entered: 08/06/2012)
08/08/2012	132	MINUTE ENTRY for Trial Preparation Conference held on 8/8/2012 proceedings held before Chief Judge Wiley Y. Daniel. Deferring ruling on 107 Motion in Limine. Set/Reset Deadlines: Akron Town Council, The answer due 8/13/2012; Board of Trustees of the Town of Akron, The answer due 8/13/2012; Colorado Plains Regional Airport Development Committee, The answer due 8/13/2012; Carl S. McGuire, II answer due 8/13/2012; Town of Akron, Colorado answer due 8/13/2012. Court Reporter: Tammy Hoffschmidt. (wydcd, rrk) (Entered: 08/09/2012)
08/13/2012	133	ANSWER to 86 Amended Complaint, (<i>Second</i>) by Carl S. McGuire, II, Town of Akron, Colorado.(Wells, Mary) (Entered: 08/13/2012)
08/14/2012	134	Exhibit List (<i>Final</i>) by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Plaintiff's Exhibit List)(Kelley, Katherine) (Entered: 08/14/2012)
08/15/2012	135	Proposed Jury Instructions (<i>Final Stipulated</i>) by Defendants and by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Document Stipulated Jury Instructions)(Kelley, Katherine) (Entered: 08/15/2012)
08/15/2012	136	Proposed Jury Instructions (<i>Final Disputed</i>) by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Document Disputed Jury Instructions)(Kelley, Katherine) (Entered: 08/15/2012)
08/15/2012	137	Proposed Jury Instructions <i>Third Tender with Objections</i> by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Document)(Doherty, Peter)

		(Entered: 08/15/2012)
08/16/2012	138	Exhibit List <i>FINAL</i> by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Document Exhibit List)(Doherty, Peter) (Entered: 08/16/2012)
08/16/2012	139	OBJECTIONS to 137 Proposed Jury Instructions by Plaintiff Cross Continent Development, LLC. (Kelley, Katherine) (Entered: 08/16/2012)
08/17/2012	140	MOTION in Limine <i>Regarding Character Evidence of Richard Kusel</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit 1)(Kelley, Katherine) (Entered: 08/17/2012)
08/18/2012	141	RESPONSE to 140 MOTION in Limine <i>Regarding Character Evidence of Richard Kusel</i> filed by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Wells, Mary) (Entered: 08/18/2012)
08/20/2012	142	MINUTE ENTRY for Jury Trial (Day 1) held on 8/20/2012 proceedings held before Chief Judge Wiley Y. Daniel. Granting in part and denying in part as reflected on the record 140 Motion in Limine. Court Reporter: Tammy Hoffschildt. (Attachments: # 1 Jury Strike Sheet) (wydcd, rrk) (Main Document 142 replaced on 8/30/2012) (wydcd,). (Entered: 08/21/2012)
08/21/2012	143	MINUTE ENTRY for Jury Trial (Day 2) held on 8/21/2012 proceedings held before Chief Judge Wiley Y. Daniel. Court Reporter: Tammy Hoffschildt. (wydcd, rrk) (Main Document 143 replaced on 8/30/2012) (wydcd,). (Entered: 08/23/2012)
08/22/2012	144	MINUTE ENTRY for Jury Trial (Day 3) held on 8/22/2012 proceedings held before Chief Judge Wiley Y. Daniel. Court Reporter: Tammy Hoffschildt. (wydcd, rrk) (Main Document 144 replaced on 8/30/2012) (wydcd,). (Entered: 08/27/2012)
08/23/2012	145	MINUTE ENTRY for Jury Trial (Day 4) held on 8/23/2012 proceedings held before Chief Judge Wiley Y. Daniel. Court Reporter: Tammy Hoffschildt. (wydcd, rrk) (Main Document 145 replaced on 8/30/2012) (wydcd,). (Entered: 08/27/2012)
08/27/2012	146	MINUTE ENTRY for Jury Trial (Day 5) held on 8/27/2012 proceedings held before Chief Judge Wiley Y. Daniel. Denying 107 Motion in Limine. Court Reporter: Tammy Hoffschildt. (wydcd, rrk) (Entered: 08/30/2012)
08/28/2012	147	MINUTE ENTRY for Jury Trial (Day 6) held on 8/28/2012 proceedings held before Chief Judge Wiley Y. Daniel. Defendants' oral motion for judgment as a matter of law is denied. Court Reporter: Tammy Hoffschildt. (wydcd, rrk) (Entered: 08/31/2012)
08/29/2012	148	MINUTE ENTRY for Jury Trial (Day 7) completed on 8/29/2012 proceedings held before Chief Judge Wiley Y. Daniel. JURY VERDICT. Pursuant to General Order 2007-3 the original Jury Verdict has been filed conventionally by delivery to the Clerks Office. A representation of the Jury Verdict is attached to the court minutes. Court Reporter: Tammy Hoffschildt. (Attachments: # 1 Plaintiff's Witness List, # 2 Plaintiff's Exhibit List, # 3 Defendants' Witness List, # 4 Defendants' Exhibit List, # 5 Jury Note #1, # 6 Jury Note #2 - Verdict, # 7 Final Jury Instructions, # 8 Verdict Form #1, # 9 Verdict Form #2) (wydcd, rrk) (Entered: 08/31/2012)
08/29/2012	149	ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS entered by Chief Judge Wiley Y. Daniel on 8/29/12. (wydcd, rrk) (Entered: 08/31/2012)
09/06/2012	150	FINAL JUDGMENT. ORDERED that final judgment is hereby entered in favor of Defendants, Town of Akron, Colorado, a Colorado municipal corporation; The Akron Town Council; Carl S. McGuire II, Esq., in his official capacity as Attorney for the Town of Akron; the Board of Trustees of the Town of Akron; and The Colorado Plains Regional

		Airport Development Committee, and against Plaintiff, Cross Continent Development, LLC, a Colorado limited liability corporation, on Plaintiff's claims of Breach of Contract, Fourteenth Amendment - Procedural Due Process, and Fourteenth Amendment - Substantive Due Process claims. ORDERED that plaintiffs second amended complaint and this civil action are dismissed with prejudice. ORDERED that Defendants shall have their costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen (14) days of entry of judgment by Clerk on 09/06/12. Approved as to Form by Chief Judge Wiley Y. Daniel (jjhsl,) (Entered: 09/06/2012)
09/20/2012	151	Proposed Bill of Costs by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Doherty, Peter) (Entered: 09/20/2012)
10/01/2012	152	STIPULATION re 151 Proposed Bill of Costs by Defendants Akron Town Council, The, Board of Trustees of the Town of Akron, The, Colorado Plains Regional Airport Development Committee, The, Carl S. McGuire, II, Town of Akron, Colorado, Plaintiff Cross Continent Development, LLC. (Doherty, Peter) (Entered: 10/01/2012)
10/02/2012	153	Costs Taxed in amount of \$ 10,726.58 against Plaintiff (jjhsl,) (Entered: 10/02/2012)
10/04/2012	154	NOTICE OF APPEAL as to 150 Clerk's Judgment,,, Set/Clear Flags,,, by Plaintiff Cross Continent Development, LLC (Filing fee \$ 455, Receipt Number 1082-3050446) (Kelley, Katherine) (Entered: 10/04/2012)
10/05/2012	155	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 154 Notice of Appeal filed by Cross Continent Development, LLC to the U.S. Court of Appeals. (Retained Counsel, Fee paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record)(lswsl) (Entered: 10/05/2012)
10/05/2012	156	USCA Case Number 12-1391 for 154 Notice of Appeal filed by Cross Continent Development, LLC. (lswsl) (Entered: 10/05/2012)
10/17/2012	157	TRANSCRIPT ORDER FORM re 154 Notice of Appeal by Plaintiff Cross Continent Development, LLC (Morales, Victor) (Entered: 10/17/2012)
10/31/2012	158	TRANSCRIPT ORDER FORM re 154 Notice of Appeal (<i>Designation of Additional Transcript</i> by Defendants Carl S. McGuire, II, Town of Akron, Colorado (Wells, Mary) (Entered: 10/31/2012)
11/14/2012	159	REPORTER TRANSCRIPT ORDER FORM filed by Tammy Hoffschild; Transcripts ordered 8/20/12 - 8/29/12 re: 157 Transcript Order Form, 154 Notice of Appeal. Transcript due by 12/17/2012. (lswsl) (Entered: 11/15/2012)
11/28/2012	160	TRANSCRIPT of Jury Trial held on August 20, 2012 before Judge Daniel. Pages: 1-74. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/1/2013. (Hoffschildt, Tamara) (Entered: 11/28/2012)
11/28/2012	161	TRANSCRIPT of Jury Trial held on August 21, 2012 before Judge Daniel. Pages: 75-287. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of

		the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/1/2013. (Hoffschildt, Tamara) (Entered: 11/28/2012)
11/28/2012	162	TRANSCRIPT of Jury Trial held on August 22, 2012 before Judge Daniel. Pages: 288-497. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/1/2013. (Hoffschildt, Tamara) (Entered: 11/28/2012)
11/28/2012	163	TRANSCRIPT of Jury Trial held on August 23, 2012 before Judge Daniel. Pages: 498-723. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/1/2013. (Hoffschildt, Tamara) (Entered: 11/28/2012)
11/28/2012	164	TRANSCRIPT of Jury Trial held on August 27, 2012 before Judge Daniel. Pages: 724-920. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/1/2013. (Hoffschildt, Tamara) (Entered: 11/28/2012)
11/28/2012	165	TRANSCRIPT of Jury Trial held on August 28, 2012 before Judge Daniel. Pages: 921-1144. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER.

		Release of Transcript Restriction set for 3/1/2013. (Hoffschildt, Tamara) (Entered: 11/28/2012)
11/28/2012	166	TRANSCRIPT of Jury Trial held on August 29, 2012 before Judge Daniel. Pages: 1145-1154. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/1/2013. (Hoffschildt, Tamara) (Entered: 11/28/2012)
11/29/2012	167	Corrected 161 TRANSCRIPT of Jury Trial held on August 21, 2012 corrected the date on the title page from August 20, 2012, to August 21, 2012, before Judge Daniel. Pages: 75-287. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/4/2013. (Hoffschildt, Tamara) Modified on 11/30/2012 to add linkage (lswsl). (Entered: 11/29/2012)
11/30/2012	168	TRANSCRIPT of Trial Preparation Conference held on August 8, 2012 before Judge Daniel. Pages: 1-32. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/4/2013. (Hoffschildt, Tamara) (Entered: 11/30/2012)
12/03/2012	169	LETTER TO USCA and all counsel certifying the record is complete as to 154 Notice of Appeal filed by Cross Continent Development, LLC. All transcripts ordered are now on file as of 11/30/2012. (Appeal No. 12-1391) Text Only Entry (lswsl) (Entered: 12/03/2012)
12/06/2013	170	ORDER of USCA as to 154 Notice of Appeal filed by Cross Continent Development, LLC. We AFFIRM the jurys verdict on the due process claims. We conclude that Instruction 23 was erroneous and prejudicial to CCD. We therefore REVERSE the jurys verdict on the breach of contract claim and REMAND. (USCA Case No. 12-1391) (dbrow,) (Entered: 12/06/2013)

01/08/2014	171	ORDER of USCA as to 154 Notice of Appeal filed by Cross Continent Development, LLC. Appellant is awarded and the appellees are taxed costs in the amount of \$1,287.05. All other costs requested by the appellant are denied. (USCA Case No. 12-1391) (dbrow,) (Entered: 01/08/2014)
01/13/2014	172	ORDER of USCA as to 154 Notice of Appeal filed by Cross Continent Development, LLC. The courts January 8, 2014 order awarding costs to the appellant is modified in that costs are taxed against Appellee Town of Akron, Colorado, only. (USCA Case No. 12-1391) (dbrow,) (Entered: 01/13/2014)
01/13/2014	173	MANDATE of USCA as to 154 Notice of Appeal filed by Cross Continent Development, LLC : (USCA Case No. 12-1391) (dbrow,) (Entered: 01/13/2014)
01/13/2014	174	MOTION to Dismiss for Lack of Jurisdiction (<i>Federal Subject Matter</i>) by Defendant Town of Akron, Colorado. (Wells, Mary) (Entered: 01/13/2014)
01/14/2014	175	MINUTE ORDER: Status Conference set for 2/4/2014 02:00 PM in Courtroom A1002 before Judge Wiley Y. Daniel. by Judge Wiley Y. Daniel on 1/14/2014. (trlee,) (Entered: 01/14/2014)
01/14/2014	176	NOTICE of Entry of Appearance by Marilyn S. Chappell on behalf of Town of Akron, ColoradoAttorney Marilyn S. Chappell added to party Town of Akron, Colorado(pty:dft) (Chappell, Marilyn) (Entered: 01/14/2014)
01/14/2014	177	NOTICE of Entry of Appearance by David G. Mayhan on behalf of Town of Akron, ColoradoAttorney David G. Mayhan added to party Town of Akron, Colorado(pty:dft) (Mayhan, David) (Entered: 01/14/2014)
02/03/2014	178	RESPONSE to 174 MOTION to Dismiss for Lack of Jurisdiction (<i>Federal Subject Matter</i>) filed by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 02/03/2014)
02/04/2014	179	MINUTE ENTRY for Status Conference held on 2/4/2014 proceedings held before Judge Wiley Y. Daniel. Denying 174 Motion to Dismiss for Lack of Jurisdiction. Set/Reset Hearings: 5-Day Jury Trial set for 4/14/2014 08:30 AM in Courtroom A1002 before Judge Wiley Y. Daniel. Trial Preparation Conference set for 3/27/2014 at 09:00 AM in Courtroom A1002 before Judge Wiley Y. Daniel. Trial Preparation Conference set for 4/1/2014 at 10:30 AM in Courtroom A1002 before Judge Wiley Y. Daniel. Court Reporter: Mary George. (wydcd, rrk) (Entered: 02/05/2014)
02/06/2014	180	ORDER. ORDERED that Defendant Town of Akrons Motion to Dismiss for Lack offederal Subject Matter Jurisdiction filed January 13, 2014 (ECF No. 174) is DENIED. ORDERED that a five (5) day jury trial is set to commence onMonday, April 14, 2014, at 8:30 a.m. A Final Trial Preparation Conference is set for Tuesday, April 1, 2014, at 10:30 a.m. Alternatively, in the event counsel is not available on April 1, 2014, a Final Trial Preparation Conference is set for Thursday, March 27, 2014, at 9:00 a.m by Judge Wiley Y. Daniel on 02/06/14. (jhawk,) (Entered: 02/06/2014)
02/07/2014	181	MOTION to Amend/Correct/Modify <i>Caption</i> by Defendant Town of Akron, Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Chappell, Marilyn) (Entered: 02/07/2014)
02/07/2014	182	ORDER granting 181 Motion to Amend Caption. ORDERED that the caption in this action is hereby amended to reflect that Town of Akron, Colorado, a Colorado municipal corporation, is the sole Defendant in this action. All other Defendants have been taken off the caption by Judge Wiley Y. Daniel on 02/07/14.(jhawk,) (Entered: 02/07/2014)

02/10/2014	183	ORDER Setting Settlement Conference for 3/13/2014 at 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya, by Magistrate Judge Kathleen M. Tafoya on 2/10/14. (sgrim) (Entered: 02/10/2014)
02/25/2014	184	NOTICE of Availability For April 1, 2014 Final Trial Preparation Conference by Defendant Town of Akron, Colorado (Mayhan, David) (Entered: 02/25/2014)
02/26/2014	185	MINUTE ORDER entered by Judge Wiley Y. Daniel on 2/26/14. Alternate trial preparation conference set for Thursday, March 27, 2014, at 9:00 a.m., is vacated. (rkeec) (Entered: 02/26/2014)
02/28/2014	186	MOTION in Limine Regarding Plaintiff's Complaints and Damages Claims and Regarding Character Evidence of Richard Kusel by Defendant Town of Akron, Colorado. (Attachments: # 1 Exhibit A-Plaintiffs Initial Rule 26(a)(1) Disclosure, dtd 2/28/2010, # 2 Exhibit B-Bowin 11/3/10 Depo Excerpts, # 3 Exhibit C-Hayes 1/5/11 Depo Excerpts, # 4 Exhibit D-Trial Tran., Vol. 2, dtd 8/21/12)(Mayhan, David) (Entered: 02/28/2014)
03/06/2014	187	MOTION to Withdraw as Attorney by Defendant Town of Akron, Colorado. (Doherty, Peter) (Entered: 03/06/2014)
03/06/2014	188	MEMORANDUM regarding 187 MOTION to Withdraw as Attorney filed by Town of Akron, Colorado. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Wiley Y. Daniel on 3/6/14. Text Only Entry (rkeec) (Entered: 03/06/2014)
03/06/2014	189	MINUTE ORDER granting 187 Motion to Withdraw as Counsel. Attorneys Peter H. Doherty and Mary Kathryn Strauss are relieved from any further representation, by Magistrate Judge Kathleen M. Tafoya on 3/6/14. Text Only Entry.(sgrim) (Entered: 03/06/2014)
03/12/2014	190	Proposed Jury Instructions by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Document Jury Instruction No 1 with language from appeals court, # 2 Proposed Document Plaintiff's Proposed Jury Instructions)(Morales, Victor) (Entered: 03/12/2014)
03/12/2014	191	Proposed Jury Instructions <i>Preliminary Tender of Disputed Jury Instructions</i> by Defendant Town of Akron, Colorado. (Mayhan, David) (Entered: 03/12/2014)
03/13/2014	193	MINUTE ENTRY for Settlement Conference held before Magistrate Judge Kathleen M. Tafoya on 3/13/2014. (lag) (Entered: 03/17/2014)
03/14/2014	192	Proposed Jury Instructions <i>and Defendant's Objections</i> by Defendant Town of Akron, Colorado. (Mayhan, David) (Entered: 03/14/2014)
03/20/2014	194	MINUTE ORDER Plaintiff shall file a response to 186 MOTION in Limine Regarding Plaintiff's Complaints and Damages Claims and Regarding Character Evidence of Richard Kusel filed by Town of Akron, Colorado, by Tuesday, March 25, 2014. Defendant may, if it wishes, file a reply by Friday, March 28, 2014. by Judge Wiley Y. Daniel on 3/20/2014. (evana,) (Entered: 03/20/2014)
03/25/2014	195	Exhibit List (<i>Preliminary</i>) by Defendant Town of Akron, Colorado. (Attachments: # 1 Exhibit A - Defendant's Preliminary Exhibit List)(Entrican, Rachel) (Entered: 03/25/2014)
03/25/2014	196	Witness List (<i>Preliminary</i>) by Defendant Town of Akron, Colorado. (Entrican, Rachel) (Entered: 03/25/2014)
03/25/2014	197	Proposed Voir Dire by Defendant Town of Akron, Colorado. (Entrican, Rachel) (Entered: 03/25/2014)

03/25/2014	198	RESPONSE to 186 MOTION in Limine <i>Regarding Plaintiff's Complaints and Damages Claims and Regarding Character Evidence of Richard Kusel</i> filed by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 03/25/2014)
03/26/2014	199	Witness List <i>Preliminary</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 03/26/2014)
03/27/2014	200	Exhibit List <i>Preliminary</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit A - Plaintiff's Exhibit List)(Morales, Victor) (Entered: 03/27/2014)
03/28/2014	201	REPLY to Response to 186 MOTION in Limine <i>Regarding Plaintiff's Complaints and Damages Claims and Regarding Character Evidence of Richard Kusel</i> filed by Defendant Town of Akron, Colorado. (Mayhan, David) (Entered: 03/28/2014)
03/31/2014	202	Proposed Jury Instructions <i>on Breach of Contract</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Instruction 2)(Morales, Victor) (Entered: 03/31/2014)
04/01/2014	203	MINUTE ENTRY for Trial Preparation Conference held on 4/1/2014 before Judge Wiley Y. Daniel. Granting in part and denying in part 186 Motion in Limine as stated on the record. ORDERED: Parties shall file a statement of the case by 4/4/14. Parties shall file a stipulated, substantive contract jury instruction by 4/4/14. Trial shall commence 4/14/14 at 8:30 a.m. FTR: Nel Steffens. (nsteff) (Entered: 04/04/2014)
04/04/2014	204	Proposed Jury Instructions <i>Retendered on Breach of Contract</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Jury Instruction No. 1)(Morales, Victor) (Entered: 04/04/2014)
04/04/2014	205	Proposed Jury Instructions , <i>Revised Objections and Tender of Stipulated and Disputed</i> by Defendant Town of Akron, Colorado. (Mayhan, David) (Entered: 04/04/2014)
04/09/2014	206	Proposed Voir Dire <i>Questions</i> by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 04/09/2014)
04/09/2014	207	Proposed Verdict Form <i>Alternate</i> by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Proposed Verdict Form)(Morales, Victor) (Entered: 04/09/2014)
04/10/2014	208	Exhibit List by Defendant Town of Akron, Colorado. (Attachments: # 1 Defendant's First Supplemental and Amended Exhibit List)(Entrican, Rachel) (Entered: 04/10/2014)
04/11/2014	209	Witness List (<i>First Supplemental</i>) by Defendant Town of Akron, Colorado. (Entrican, Rachel) (Entered: 04/11/2014)
04/14/2014	210	MINUTE ENTRY for Jury Trial (Day 1) held on 4/14/2014 before Judge Wiley Y. Daniel. Court Reporter: Mary George. (Attachments: # 1 Jury Strike Sheet) (rkeec) (Entered: 04/15/2014)
04/15/2014	211	MINUTE ENTRY for Jury Trial (Day 2) held on 4/15/2014 before Judge Wiley Y. Daniel. Court Reporter: Mary George. (rkeec) (Entered: 04/16/2014)
04/16/2014	212	MINUTE ENTRY for Jury Trial (Day 3) held on 4/16/2014 before Judge Wiley Y. Daniel. Court Reporter: Mary George. (rkeec) (Entered: 04/17/2014)
04/17/2014	213	MINUTE ENTRY for Jury Trial (Day 4) held on 4/17/2014 before Judge Wiley Y. Daniel. Court Reporter: Mary George. (Attachments: # 1 Jury Instruction No. 15 - Defendant's Alt. 1 - REFUSED, # 2 Jury Instruction No. 15 - Defendant's Alt. 2 - REFUSED) (rkeec) (Entered: 04/18/2014)
04/18/2014	214	MINUTE ENTRY for Jury Trial (Day 5) completed on 4/18/2014 before Judge Wiley Y. Daniel. JURY VERDICT. Defendants oral Rule 50(a) motion for judgment as a matter of

		law is DENIED. Plaintiffs oral Rule 50(a) motion for judgment as a matter of law is DENIED. Pursuant to General Order 2007-3 the original Jury Verdict has been filed conventionally by delivery to the Clerks Office. A representation of the Jury Verdict is attached to the court minutes. Court Reporter: Mary George. (Attachments: # 1 Plaintiff's Proposed Verdict Form - REFUSED., # 2 Plaintiff's Witness List, # 3 Plaintiff's Exhibit List, # 4 Defendant's Witness List, # 5 Defendant's Exhibit List, # 6 Note from Jury (Verdict)) (rkeec) Modified on 4/21/2014 to include language about original verdict being filed conventionally (rkeec). (Entered: 04/21/2014)
04/18/2014	215	Final Jury Instructions and Verdict Form. (rkeec) (Entered: 04/21/2014)
04/18/2014	216	JURY VERDICT. (rkeec) (Entered: 04/21/2014)
04/18/2014	217	ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS by Judge Wiley Y. Daniel on 4/18/14. (rkeec) (Entered: 04/21/2014)
04/21/2014	218	FINAL JUDGMENT by Clerk in favor of Cross Continent Development, LLC against Town of Akron, Colorado re: 216 Jury Verdict, by Robb R. Keech, Deputy Clerk on 4/21/2014. (evana,) (Entered: 04/21/2014)
05/05/2014	219	Proposed Bill of Costs by Defendant Town of Akron, Colorado. (Attachments: # 1 Exhibit A-Fees and Disbursements for Printing, # 2 Exhibit B-Fees for Witnesses, # 3 Exhibit C-Docket Fees, # 4 Exhibit D-Town of Akron's Offer of Judgment, dated 3-18-2014)(Mayhan, David) (Entered: 05/05/2014)
05/05/2014	220	Proposed Bill of Costs by Defendant Carl S. McGuire, II. (Attachments: # 1 Exhibit A-Fees of the Court Reporter and Transcripts, # 2 Exhibit B-Fees and Disbursements for Printing, # 3 Exhibit C-Docket Fees)(Entrican, Rachel) (Entered: 05/05/2014)
05/05/2014	221	Proposed Bill of Costs (<i>Amended</i>) by Defendant Town of Akron, Colorado. (Attachments: # 1 Exhibit A-Fees and Disbursements for Printing, # 2 Exhibit B-Fees for Witnesses, # 3 Exhibit C-Docket Fees, # 4 Exhibit D-Town of Akron's Offer of Judgment, dated 3-18-2014)(Mayhan, David) (Entered: 05/05/2014)
05/05/2014	222	Proposed Bill of Costs by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit A -Various Fees, # 2 Exhibit B - Court Reporter Fees, # 3 Exhibit C - Witness Fees)(Morales, Victor) (Entered: 05/05/2014)
05/06/2014	223	Proposed Bill of Costs (<i>Amended</i>) by Plaintiff Cross Continent Development, LLC. (Attachments: # 1 Exhibit A - various various fees, # 2 Exhibit B - court reporter fees, # 3 Exhibit C - witness fees)(Morales, Victor) (Entered: 05/06/2014)
05/19/2014	224	NOTICE re 223 Proposed Bill of Costs, 220 Proposed Bill of Costs, 221 Proposed Bill of Costs, <i>And Status of Cost Hearing</i> by Defendant Town of Akron, Colorado (Entrican, Rachel) (Entered: 05/19/2014)
05/20/2014	225	Costs Taxed in amount of \$ 3,307.97 for Town of Akron, Colorado and against Plaintiff (evana,) (Entered: 05/21/2014)
05/20/2014	226	Costs Taxed in amount of \$ 4,788.17 for Carl S. McGuire against Plaintiff (evana,) (Entered: 05/21/2014)
05/20/2014	227	Costs Taxed in amount of \$ 14,592.80 for Plaintiff against The Town of Akron Colorado (evana,) (Entered: 05/21/2014)
05/23/2014	228	MOTION for Costs <i>Setoff of</i> by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Entrican, Rachel) (Entered: 05/23/2014)

06/16/2014	229	RESPONSE to 228 MOTION for Costs <i>Setoff of and Objection</i> filed by Plaintiff Cross Continent Development, LLC. (Morales, Victor) (Entered: 06/16/2014)
06/30/2014	230	REPLY to Response to 228 MOTION for Costs <i>Setoff of</i> filed by Defendants Carl S. McGuire, II, Town of Akron, Colorado. (Entrican, Rachel) (Entered: 06/30/2014)
10/16/2014	231	ORDER granting 228 Defendants Motion for Setoff of Costs. In accordance therewith, it is ORDERED that Plaintiff's cost award of \$14,592.80 is reduced by \$8,096.14, the amount of costs awarded to Defendant Town of Akron and former Defendant Carl McGuire and stipulated to by Plaintiff. This setoff satisfies Plaintiff's liability for all costs awarded to Defendant Town of Akron and former Defendant Carl McGuire in this matter. It is FURTHER ORDERED that Defendant Town of Akron shall pay to Plaintiff the total amount of \$6,496.66 in costs, plus the \$1.00 judgment awarded by the jury to Plaintiff on April 18, 2014, which shall satisfy Defendant Town of Akrons liability for all costs and judgments awarded to Plaintiff in this matter, by Judge Wiley Y. Daniel on 10/16/2014. (evana,) (Entered: 10/16/2014)
11/20/2014	232	NOTICE re 218 Clerk's Judgment, 231 Order on Motion for Costs,,, <i>Satisfaction of Judgments</i> by Plaintiff Cross Continent Development, LLC (Morales, Victor) (Entered: 11/20/2014)

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